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Case Number: 26STCV02418 Hearing Date: July 15, 2026 Dept: 514

Martinez v. General Motors, LLC

26STCV02418

Defendant's Demurrer to First Amended Complaint

Defendant's Motion to Strike

Tentative Ruling

The demurrer is overruled.

The motion to strike is denied.

The Court will proceed with the Case Management Conference.

Background

On January 23, 2026, John Martinez ("Plaintiff") filed the complaint in this action against General Motors, LLC ("Defendant") and Does 1 through 20 arising out of Plaintiff's purchase of a 2024 Chevrolet Equinox EV (the "Vehicle").

On February 24, 2026, Plaintiff filed a First Amended Complaint (the "FAC"). In the FAC, Plaintiff asserts causes of action for (1) breach of the implied warranty of merchantability under the Song-Beverly Act, (2) breach of express warranty under the Song-Beverly Act, (3) fraudulent concealment, and (4) violation of the Consumer Legal Remedies Act, Civil Code sections 1750, et seq.

On April 1, 2026, Defendant filed this demurrer and motion to strike. Plaintiff filed oppositions on May 19, and Defendant filed replies on May 26.

The trial date has not yet been set.

Legal Standard

Demurrer

Code of Civil Procedure section 430.10 provides:

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

…

(e) The pleading does not state facts sufficient to constitute a cause of action.

(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible. ..."

A general demurrer under Code of Civil Procedure section 430.10, subdivision (e), tests whether the complaint states a cause of action. (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388; Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial [2025], ¶ 7:40.)

"We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. We also consider matters which may be judicially noticed.” (Centinela Freeman Emergency Medical Associates v. Health Net of California (2016) 1 Cal.5th 994, 1010; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; accord Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924; Marina Pacific Hotel and Suites v. Fireman’s Fund Insurance Company (2022) 81 Cal.App.5th 96, 104.) All reasonable inferences must be drawn in favor of the pleading. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081; Marina Pacific Hotel and Suites, supra, 81 Cal.App.5th at p. 104.) Even “improbable” facts alleged in the pleading must be accepted as true. (Marina Pacific Hotel and Suites, supra, 81 Cal.App.5th at pp. 104-105.)

Courts must “liberally construe the pleading” and “give the complaint a reasonable interpretation, reading it as a whole and its parts in context.” (Id. at p. 105.)

A complaint must contain a “statement of facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1); see also C.A. v. William S. Hart High School Dist. (2012) 53 Cal.4th 861, 872 [“the complaint need only allege facts sufficient to state a cause of action”].) Ordinarily, a complaint “is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) Ultimate facts are those upon which “the right to recover depends” and are “essential” to the cause of action. (Estes v. Eaton Corp. (2020) 51 Cal.App.5th 636, 643 fn. 2; see also 1 Weil & Brown, supra, ¶ 6:124.)

A plaintiff is required to plead only “the essential facts of [its] case” that are sufficient “to acquaint a defendant with the nature, source and extent of [the] cause of action.” (Doe, supra, 42 Cal.4th at p. 550.) Mere boilerplate or pleading of legal conclusions is not sufficient. (Id. at p. 551 fn. 5.) But a plaintiff need not allege “each evidentiary fact that might eventually form part of plaintiff’s proof” at trial. (C.A., supra, 53 Cal.4th at p. 872.)

A demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f), is “disfavored” and will be sustained “only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors (2019) 38 Cal.App.5th 677, 695; accord Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3.) A complaint need not be “a model of clarity” and must only contain sufficient allegations to put the defendants on notice of the claims against them. (A.J. Fistes Corp., supra, 38 Cal.App.5th at p. 695.) As the Court of Appeal has observed, “where a complaint is in some respects uncertain, … ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; see also 1 Weil & Brown, supra, ¶¶ 7:85-7:86.)

A demurrer can be sustained only when it disposes of an entire cause of action. (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend should be granted when “there is a reasonable possibility that the defect can be cured by amendment.” (Centinela Freeman, supra, 1 Cal.5th at p. 1010; Blank, supra, 39 Cal.3d at p. 318; Shaeffer v. Califia Farms (2020) 44 Cal.App.5th 1125, 1145.)

Motion to Strike

Under Code of Civil Procedure section 435, “Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435, subd. (b)(1).)

Code of Civil Procedure section 436 provides:

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

(Code Civ. Proc., § 436.) In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.)

Meet and Confer Requirement

Before filing a demurrer or motion to strike, the parties must “meet and confer in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a) & § 435.5, subd. (a).) This requirement has been satisfied. (Kay Decl., ¶ 2.)

Discussion

Demurrer

Defendant demurs to Plaintiff’s Third Cause of Action (for fraudulent inducement) and Fourth Cause of Action (for violation of the Consumers Legal Remedies Act).

(1) Plaintiff’s third cause of action for fraudulent concealment fails to plead the fraud with the required level of particularity;

(2) Plaintiff’s third cause of action for fraudulent concealment fails to allege a transactional relationship giving rise to a duty to disclose; and

(3) Plaintiff’s fourth cause of action for violation of the Consumers Legal Remedies Act fails to plead with fraud with the required level of particularity.

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Third Cause of Action (Fraudulent Inducement – Concealment) – Failure to State Facts Sufficient to Constitute a Cause of Action

“One who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers.” (Civ. Code, § 1709.)

The Civil Code recognizes four types of fraud: (1) an intentional misrepresentation; (2) a negligent misrepresentation; (3) concealment; and (4) promissory fraud. (Civ. Code, § 1710.) “California case law … has viewed fraud by concealment on equal footing with fraud by affirmative misrepresentation.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 39.)

The elements of a cause of action for fraudulent concealment are:

“(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.”

(Rattagan, supra, 17 Cal.5th at p. 40; see also Boschma v. Home Loan Center (2011) 198 Cal.App.4th 230, 248; Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.)

Fraudulent concealment is actionable only when there is a duty to disclose.

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendantknows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large."

(Rattagan, supra, 17 Cal.5th at pp. 40–41 [citations omitted]; see also, e.g., Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312; SCC Acquisitions v. Central Pacific Bank (2012) 207 Cal.App.4th 859, 860; LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336–37.)

A plaintiff must plead fraud with particularity. (Robinson Helicopter Co. v. Dana Corp. (2004) 34 Cal.4th 979, 993; Lazar v. Super Ct. (1996) 12 Cal.4th 631, 645; Glaski v. Bank of America (2013) 218 Cal.App.4th 1079, 1090-1092.) This rule applies to causes of action for fraudulent concealment. As our Supreme Court has explained:

"If the duty [to disclose] allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts …, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission."

(Goodman v. Kennedy (1976) 18 Cal.3d 335, 347.) "[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[ ] ... are insufficient." (Ibid; see also Rattagan, supra, 17 Cal.5th at pp. 43–44.)

Here, Defendant argues that Plaintiff failed to allege specific facts as to what Defendant failed to disclose, that Defendant knew of those facts at the time of sale, that Plaintiff relied on these omitted facts, and what specific advertisements did Plaintiff rely on, when were they viewed and who prepared these advertisements.

First, the Court finds that Plaintiff alleges that the Vehicle suffers from a defect in the propulsion system that can cause the Vehicle to shutdown while being driven. (FAC, ¶ 16.) Defendant knew of this defect with the propulsion system and knew that the Vehicle was equipped with the faulty propulsion system before purchase. (FAC, ¶ 113.) Defendant had superior knowledge of the defect based on: “their own engineering analysis and testing; the numerous complaints received directly from consumers; information provided to authorized dealers via Technical Service Bulletins ("TSBs"); information received directly from Defendants' authorized dealers; NHTSA complaints; their own internal records (including durability testing and failure rates); and requests from Defendants' authorized dealerships for technical assistance regarding the Defective BEV Defendants have not offered their customers, including Plaintiff, a suitable repair or replacement free of charge.” (FAC, ¶ 20.) Plaintiff contends none of this information was made available to the public. (FAC, ¶ 114.) Plaintiff alleges that this information was material to a reasonable consumer like Plaintiff. (FAC, ¶ 115.) Plaintiff contends that Defendant failed to disclose this information at the time of sale and repair. (FAC, ¶ 118.)

The Court finds Plaintiffs have alleged with sufficient particularity the facts necessary to support the fraud cause of action.

Second, turning to the duty to disclose, the duty arises in part because of Defendant’s (alleged) exclusive knowledge of the defect. Defendant argues that it had no duty to disclose because Plaintiffs do not allege that they purchased the vehicle directly from Defendant and there was no direct transaction between Plaintiffs and Defendant. But Defendant overstates, to at least some degree, the relationship required to give rise to a duty to disclose.

California law has long recognized that a seller “has a duty to disclose material facts not only to immediate purchasers but also to subsequent purchasers when the [seller] has reason to expect that the item will be resold.” (OCM Principal Opportunities Fund v. CIBC World Markets Corp. 157 Cal.App.4th 835, 859 [sale of securities]; accord Geernaert v. Mitchell

(1995) 31 Cal.App.4th 601, 605–09 [real estate]; Barnhouse v. City of Pinole (1982) 133 Cal.App.3d 171, 192–93 [real estate]; cf. Restatement (Second) of Torts, § 533 [recognizing that a fraud cause of action can be based on an indirect misrepresentation].)

A recently decided case, Bjoin v. J-M Manufacturing Co. (2025) 113 Cal.App.5th 884, is not to the contrary. In Bjoin, our Court of Appeal reaffirmed and applied the general rule that there is no duty to disclose between a defendant and "the public at large." (113 Cal.App.5th at pp. 902-904.) But that is not what Plaintiffs are alleging here. Rather, liberally construing the complaint, and drawing all reasonable inferences in favor of Plaintiffs, Plaintiffs sufficiently allege not a direct transaction with Defendant but an indirect transaction, in which Defendant manufactured or distributed the vehicle, with the understanding and reasonable expectation that its vehicles (including the Vehicle) would be sold to consumers (including Plaintiffs) through Defendant's authorized dealers. (See, e.g., FAC, ¶¶ 4, 6, 8, 78.)

Accordingly, the requirement of a relationship giving rise to a duty to disclose is, at least as a matter of pleading, satisfied here.

The demurrer to the Third Cause of Action is overruled.

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Fourth Cause of Action (Violation of Consumers Legal Remedies Act)

In Civil Code section 1770, subdivision (a), the Consumer Legal Remedies Act (the "CLRA") prohibits certain enumerated acts or practices in connection with the sale or lease of goods or services to consumers, including the following:

"…

(5) Representing that goods or services have sponsorship, approval, characteristics, ingredients, uses, benefits, or quantities that they do not have or that a person has a sponsorship, approval, status, affiliation, or connection that the person does not have.

…

(7) Representing
that goods or services are of a particular standard, quality, or grade, or that goods are of a particular style or model, if they are of another.

…

(9) Advertising
goods or services with intent not to sell them as advertised.

…

(14) Representing
that a transaction confers or involves rights, remedies, or obligations that it does not have or involve, or that are prohibited by law.”

(Civ.
Code § 1770, subd. (a).)

In Gutierrez
v. Carmax Auto Superstores California (2018) 19 Cal.App.5th 1234, 1258, the Court of Appeal held that “subdivision (a)(5), (7), and (9) of Civil Code section 1770 proscribe material omissions in certain situations.” An omission “is actionable under the CLRA if the omitted fact is (1) contrary to a [material] representation actually made by the defendant or (2) is a fact the defendant was obliged to disclose.” (Ibid.)

Reviewing
Plaintiff’s FAC, Plaintiff alleges Defendant’s conduct amounted to unfair methos of competition and deceptive acts as defined by Civil Code section 1770. (FAC, ¶ 127.) Plaintiff contends that Defendant represented that the Vehicle’s battery was equipped to perform to a specific standard, but at the time of making these representations, knew that there was a problem with the batteries used. (FAC, ¶¶ 129-130, 133-136.) Plaintiff contends that he brought the Vehicle in for repair, Defendant knew that the issue with the battery could not be fixed, but continued to represent that the Vehicle was of a particular quality; further, the Vehicle was under warranty to provide the remedy of repairs, but Defendant was unable to fix the problem. (FAC, ¶¶ 138, 141.)

Based
on these alleged facts, and those cited above, the Court determines that Plaintiff has sufficiently stated a claim for violations under the Consumer's Legal Remedies Act with the required degree of particularity.

Accordingly,
the Court overrules the demurrer to the Fourth Cause of Action.

Motion
to Strike

Defendant
moves to strike punitive damages from the FAC, specifically Item D from the Prayer for Relief.

To recover punitive damages in a tort
action, Civil Code section 3294, subdivision (a), requires that a plaintiff prove by clear and convincing evidence "that the defendant has been guilty of oppression, fraud, or malice." In subdivision (c), the Legislature defines the terms "oppression," "fraud," and "malice" for purposes of recovering punitive damages under section 3294:

(1)
"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2)
"Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3)
"Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3).)

To plead a claim for punitive damages

under Civil Code section 3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. (College Hospital, Inc. v. Super. Ct. (1994) 8 Cal.4th 704, 721; Smith v. Super. Ct. (1992) 10 Cal.App.4th 1033, 1042.) The basis for punitive damages must be pleaded with specificity; conclusory allegations devoid of any factual assertions are insufficient. (Ibid.; see also Anschutz Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643.) A motion to strike may lie where the facts alleged, if proven, would not support a finding that the defendant acted with malice, fraud or oppression. (Today IV's Inc. v. Los Angeles County MTA (2022) 83 Cal.App.5th 1137, 1193; Turman, supra, 191 Cal.App.4th at p. 63.)

Defendant bases its motion to strike on the same arguments discussed above in connection with its demurrer. The Court has, however, overruled the demurrer and determined that Plaintiff has pleaded facts with sufficient particularity to assert causes of action based on fraud.

As Plaintiff has sufficient alleged fraud, he has also sufficiently alleged here a claim for punitive damages.

Accordingly, the motion to strike is denied.

Conclusion

The Court OVERRULES the demurrer filed by General Motors, LLC.

The Court DENIES the motion of Defendant General Motors, LLC to strike portions of the FAC.

Moving party is ordered to give notice.